

Buddy Chat — Legal & Compliance Brief (for counsel)

Prepared for the owner and outside counsel • Confidential — attorney work-product request. Not legal advice.

Status: NEEDS LEGAL REVIEW. Buddy Chat's *next-session booking* sub-feature ships **OFF** and is **counsel-gated** (`BUDDY_NEXT_SESSION_BOOKING_ENABLED` — enabling it in the Setup Wizard requires `COUNSEL_APPROVED`). The **core Buddy Chat feature is currently live** (pairing + encouragement chat, with voice notes and "connect" behind an earned unlock); this brief asks counsel to review the live parts as well and advise what, if anything, should also be gated, disclosed, or changed before continued operation.

1. What Buddy Chat is

An **accountability-buddy** layer inside the surveys/earning flow. While a member completes surveys, they are paired with another active member so neither "earns alone." The pair can see each other's daily progress and send **encouragement** — canned cheers plus limited free-text — and, once they've earned enough, unlock extended chat, optional **voice notes**, and an opt-in in-app **"connect."** Design constraints already in code:

- **No real-world meetups.** There is intentionally no feature to arrange in-person meetings; `buddyConnectRequest` is in-app only, "for user-safety reasons" per the code comment.
- **Survey answers are blocked** in chat (anti-collusion) — messages are filtered.
- **Escape valves always available:** leave/skip a buddy, go solo (premium) or re-match (non-premium), and report.
- **Moderation:** text is filtered; voice notes are **transcribed for moderation** before/at delivery.
- **18+ platform.** The product is gated to adults.
- **Tiers:** available to premium (optional, `BUDDY_PREMIUM_AVAILABLE`, default on) and non-premium (**mandatory pairing**, `BUDDY_MANDATORY_NONPREMIUM`, default on — they cannot opt out of *being paired*, though they can always leave a specific buddy and are re-matched, never trapped).
- **Next-session booking (gated, OFF):** at the end of a session every tier can pick a local time to meet again the next day — the same buddy ("keep") or someone new ("new") — and Buddy Chat auto-opens then, matching same-moment buddies across timezones. Until a booked time arrives, that user's next session is held.

Relevant docs: `BUDDY-CHAT-SPEC.md`, `BUDDY-CHAT-SCHEDULING-AND-MATCHING.md`, `BUDDYCHAT-SOCIAL-SHOP-AND-AGENTS-DESIGN.md`.

2. Questions for counsel (grouped)

A. Pairing strangers / user safety

1. Any duty-of-care or platform-liability exposure from algorithmically pairing adult strangers to chat? Does our report/block/leave design and content filtering suffice, or do we need documented trust-&-safety procedures, a code of conduct, and a takedown/appeal process?
2. Is the "no real-world meetup" posture enough to keep us clear of dating-service / in-person-introduction regulation in any state? Should Terms explicitly prohibit arranging offline meetings?

B. Voice notes — recording & consent

3. Voice notes are **recorded and transcribed for moderation**. Which jurisdictions' **two-party/all-party consent (wiretap/eavesdropping) laws** apply, and is our in-app notice + consent capture sufficient? Do both buddies need to consent to recording, and how do we evidence it?
4. Retention: how long may we keep audio clips and transcripts for moderation, and what is the deletion path?

C. Minors

5. The platform is 18+. What age-assurance is required given a social/voice feature (beyond a self-attested DOB)? What is our exposure and obligation if a minor circumvents the gate and uses Buddy Chat, especially voice?

D. Mandatory pairing for non-premium

6. Non-premium users are **paired by default and cannot opt out of being paired** (they can leave any specific buddy). Is compelled participation in a social/chat pairing a consent, unfair-practice, or dark-pattern concern (FTC / state UDAP)? Should there be a clear opt-out or a disclosure at signup?

E. Content moderation & mandatory reporting

7. What are our obligations for illegal content surfaced in chat/voice — in particular **CSAM detection and NCMEC reporting**, threats, and harassment? Do we need a documented moderation + escalation policy and records-retention for reports?

F. Data & privacy

8. Chat transcripts, voice clips, pairing history, and "connect" records are personal data. Confirm our **privacy-policy disclosures, lawful basis, retention schedule, and GDPR/CCPA deletion/right-to-access** handling for these specifically. Are voice/biometric-adjacent considerations (e.g., Illinois BIPA) triggered by voice capture even though we do not do voiceprint identification?

G. Next-session booking / scheduling (the gated sub-feature)

9. The booking feature schedules a member to be online at a chosen time and matches same-moment buddies across timezones. Any concern with **holding a user's next session** until their booked time (unfair-practice / consumer-expectation), and with the **notifications/alarms** that reopen the app (push/notification consent)?
10. Does matching two members at a designated time (even in-app only) change any of the A/B analysis above?

H. In-app "connect"

11. "Connect" lets mutually-opted-in buddies link in-app. Confirm the consent flow, what identity/contact data is exchanged, and the disclosures needed.

3. Recommendation pending review

- Keep **BUDDY_NEXT_SESSION_BOOKING_ENABLED OFF and counsel-gated** (already implemented — it now sits in the Setup Wizard's "OFF until your lawyer signs off" section and requires **COUNSEL_APPROVED** to enable).
- Have counsel review the **currently-live** core Buddy Chat (pairing, encouragement chat, voice notes, connect, mandatory non-premium pairing) and advise whether any of those should also be gated, re-consented, disclosed differently, or modified — and whether a documented **Buddy Chat Trust & Safety / Moderation policy** and updated **Terms/Privacy** language are needed before continued operation.
- Implement counsel's required disclosures/consents and retention rules; then enable booking via the Setup Wizard.